

**LAW AND MOTION TENTATIVE RULINGS**  
**DATE: SEPTEMBER 17, 2026 TIME: 8:30 A.M.**

defendant did not realize the legal effect of failing to file an answer.” (*Yarbrough v. Yarbrough* (1956) 144 Cal.App.2d 610, 615.)

Cross-defendant’s papers establish an attorney mistake. The motion is granted and cross-defendant is ordered to file his responsive pleading no later than September 25, 2026.

**No. 26CV00178**

**NAVARRO v. CSAA INSURANCE EXCHANGE**

**(UNOPPOSED) RESPONDENT’S MOTION TO COMPEL DISCOVERY**  
**RESPONSES AND FOR MONETARY SANCTIONS**

The motion is granted.

Pursuant to Insurance Code section 11580.2 (“§ 11580.2”), an uninsured motorist claimant must bring their claims through arbitration. (§ 11580.2, subd. (f).) The parties are thereafter entitled to conduct discovery pursuant to the Civil Discovery Act as in an ordinary lawsuit. (Ibid.) The Insurance Code adopts the Civil Discovery Act in its entirety and “grants the superior court the exclusive jurisdiction to hear discovery matters arising under uninsured motorist arbitrations.” (*Miranda v. 21st Century Ins. Co.* (2008) 117 Cal.App.4th 913, 926.) The parties also have the right to enforce their discovery by petition and motion in court. (§ 11580.2, subd. (f)(1).)

Claimant Jaime Navarro demanded uninsured motorist arbitration on February 5, 2024, related to a February 7, 2022 collision. Respondent CSAA Insurance Exchange served form interrogatories, special interrogatories, and a demand for inspection on August 11, 2025. Claimant has failed to provide responses and respondent brought a motion to compel, which was heard on May 5, 2026. The Court’s tentative ruling was to grant the unopposed motion. However, claimant appeared at the hearing and petitioner did not. Claimant told the Court he already provided respondent with the requested discovery; the Court accepted this representation and denied the motion as moot. (Minute Order, May 5, 2026.) Respondent did not appear at the hearing because it did not receive notice from claimant that he was challenging the tentative ruling. (Decl. of Coke at ¶¶ 5-6.)

Respondent then re-served the discovery on May 14, 2026, and filed this motion when no responses were received. seeking to compel responses to form and special interrogatories, set

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two, and demand for inspection, set two. (Decl. of Coke at ¶¶ 7-9.) Claimant did not file an opposition to this motion.

Claimant is ordered to serve verified, Code-compliant responses to the discovery requests at issue, served on May 14, 2026, and attached to the Declaration of Mr. Coke, within 20 days from the date of this hearing. The Court imposes \$1,410.00 in sanctions against Claimant pursuant to Code of Civil Procedure sections 2023.010 et seq.